

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shakina Griffith	Team: Team # 1	CCRB Case #: 201303872	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 05/04/2013 10:30 AM	Location of Incident: Smith Street and Ninth Street	18 Mo. SOL 11/4/2014	Precinct: 76
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/09/2013 12:45 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Alberto Angilletta	07001	917233	NARCBBS
2. DT3 Christopher Greiner	01425	930271	NARCBBS
3. An officer			NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Christopher Greiner	Force: DT Christopher Greiner struck § 87(2)(b) with a blunt instrument.	A . Unsubstantiated
B . DT3 Christopher Greiner	Force: DT Christopher Greiner used physical force against § 87(2)(b)	B . Unsubstantiated
C . DT3 Alberto Angilletta	Force: DT Alberto Angilletta used physical force against § 87(2)(b)	C . Unsubstantiated
D . An officer	Abuse: An officer refused to provide his name and shield number to § 87(2)(b)	D . Alleged Victim Uncooperative

Case Summary

On May 4, 2013, LT Alan Gaspard of Narcotics Borough Brooklyn South reported this complaint via phone with the Internal Affairs Bureau (IAB) on behalf of § 87(2)(b) (encl. 9a-b). On May 6, 2013, § 87(2)(b) and § 87(2)(b) filed a duplicate complaint via phone with the Internal Affairs Bureau (IAB) on behalf of § 87(2)(b) (encl. 10a-d). On May 9, 2013, the complaint was forwarded to the Civilian Complaint Review Board (CCRB) under log number 13-19564 (encl. 12a-b).

On May 4, 2013, at approximately 10:30 a.m., § 87(2)(b) waited for a bus at Smith Street and Ninth Street in Brooklyn when he was approached by DT Christopher Greiner and DT Alberto Angilletta of Narcotics Borough Brooklyn South. The following allegations resulted:

Allegation A- Force: DT Christopher Greiner struck § 87(2)(b) with a blunt instrument.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B- Force: DT Christopher Greiner used physical force against § 87(2)(b)

Allegation C- Force: DT Alberto Angilletta used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations B and C** be closed as **Unsubstantiated**.

Allegation D- Abuse of Authority: An officer refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation D** be closed as **Victim Uncooperative**.

This case was not eligible for mediation.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) year old Hispanic male § 87(2)(b) has brown hair and brown eyes.
- § 87(2)(b)

Statements to Medical Provider

On May 4, 2013, § 87(2)(b) was admitted to § 87(2)(b) § 87(2)(b) complained of a headache and lower back pain as a result of being kicked in the head multiple times. § 87(2)(b) also stated that he was punched in the stomach and heard “screaming in his left ear.” § 87(2)(b) stated that he was punched so many times that he threw up his methadone and had redness to his face. § 87(2)(b) did not mention his dentures.

Arrest Photograph

§ 87(2)(b)'s arrest photograph shows abrasions to the left side of his face (encl. 14h).

CCRB Statement

§ 87(2)(b) provided a phone statement on June 4, 2013 (encl. 13a) and was interviewed at the CCRB on June 11, 2013 (encl. 14a-g). § 87(2)(g)

On May 4, 2013, at approximately 9:00 a.m., § 87(2)(b) arrived at § 87(2)(b) in Brooklyn. § 87(2)(b) had § 87(2)(b) in their respective bottles, which were prescribed to him, and the prescriptions for those medications were in a bag from a pharmacy in his right front pocket. § 87(2)(b) received the medication two days prior to the incident. § 87(2)(b)

§ 87(2)(b) left the program and walked to a deli on Smith Street, where he obtained some food. § 87(2)(b) did not speak to anyone in between § 87(2)(b) and the deli and he did not remember what time he left § 87(2)(b). Approximately twenty minutes later, § 87(2)(b) left the deli and walked to the B57 bus stop, located at Smith Street and Ninth Street.

As § 87(2)(b) waited for the bus alone, he held a box of Newport cigarettes in one hand and lit a cigarette that was in his mouth. § 87(2)(b) did not speak to anyone while waiting for the bus and he did not do anything besides smoke a cigarette. § 87(2)(b) did not remove the medication from his pocket. Approximately ten minutes later, § 87(2)(b) saw DT Christopher Greiner of Narcotics Borough Brooklyn South, who was identified via investigation, and who was described as a male with a tan complexion in plainclothes, walk toward from him from his left side. As § 87(2)(b) smoked the cigarette, DT Greiner walked behind him, made a comment about the cigarettes, pushed § 87(2)(b)'s left shoulder forward, and struck him at the top of his head with a heavy, solid object. § 87(2)(b) did not know what the object was. § 87(2)(b) knew that DT Greiner struck him in the head because DT Greiner was the only individual behind him. DT Greiner did not say anything to § 87(2)(b) prior to the strike. Then § 87(2)(b) saw white.

When § 87(2)(b) regained consciousness, he was on his knees. While on his knees, DT Greiner grabbed the front of § 87(2)(b)'s shirt and pulled him approximately eight feet to the driver's side of an unmarked blue van that was double parked across the street from the bus stop. § 87(2)(b) saw DT Alberto Angilletta of Narcotics Borough Brooklyn South, who was identified via investigation and who was described as a white male with black hair that was pushed back, and in plainclothes. While still on his knees, § 87(2)(b) felt blows to his back and right side; however, because DT Greiner and DT Angilletta were behind him, he could not see which of the officers hit him. § 87(2)(b) was also kicked in the stomach. One of the officers put his leg in front of § 87(2)(b) grabbed the back of his shirt, and pushed him to the ground. § 87(2)(b) landed chest first with his left ear on the ground. § 87(2)(b) felt pressure on his left ear, similar to being kicked, but did not know what caused the pressure. § 87(2)(b)'s bottom dentures broke into two pieces while in his mouth and the right piece flew out

of his mouth. The bridge of § 87(2)(b)'s glasses were also broken; however, § 87(2)(b) did not know how they broke or when they broke. § 87(2)(b) did not remember who handcuffed him or when he was handcuffed, but he did not resist while being handcuffed.

DT Greiner grabbed the back of § 87(2)(b)'s pants, DT Angilletta grabbed § 87(2)(b)'s shirt, lifted him from the ground, and carried him to the rear of the van. The officers opened the van door, lifted § 87(2)(b)'s body to the ceiling of the van, and dropped him face first. § 87(2)(b) lost consciousness and did not remember any event en route to the 76th Precinct stationhouse.

When the officers and § 87(2)(b) arrived at the stationhouse, the doors were opened, but § 87(2)(b) was unable to lift himself out of the van. DT Angilletta placed his arm underneath § 87(2)(b)'s right arm and helped walk him into the stationhouse. While in a holding cell, § 87(2)(b) yelled that he wanted to go to the hospital because he was in pain. § 87(2)(b) was transported to § 87(2)(b) via ambulance and was accompanied by a male officer. § 87(2)(b) could not hear out of his left ear, sustained pain to his head, a bruise to his left shoulder, and missing skin at the top of his head which looked like a burn. § 87(2)(b) did not know how he obtained the bruise and the missing skin. § 87(2)(b) did not remember what happened at the hospital because he was dazed.

§ 87(2)(b) was transported to Brooklyn Central Booking from the hospital and he was charged with § 87(2)(b).

Complainant/Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) old white male who is § 87(2)(b) has brown hair and brown eyes.
- § 87(2)(b)

CCRB Statement

On May 6, 2013, § 87(2)(b) filed a complaint via phone with IAB (encl. 10a-d). In addition to his original complaint, § 87(2)(b) was interviewed at the CCRB on July 1, 2013 (encl. 16a-h).

§ 87(2)(g)

On May 4, 2013, at approximately 10:30 a.m., § 87(2)(b) who was the driver, and his wife § 87(2)(b) who was the passenger, stopped at a red light at Smith Street and Ninth Street. § 87(2)(b) saw a blue van double-parked on the left side of Smith Street. An individual, identified via investigation as § 87(2)(b) was on the ground on the driver's side of the van. Two males were crouched over § 87(2)(b) and they punched § 87(2)(b) § 87(2)(b) did not move. § 87(2)(b) did not recall seeing the males kick § 87(2)(b) § 87(2)(b) thought he was observing a gang fight.

When the light turned green, § 87(2)(b) crossed Ninth Street and decided to pull over onto Huntington Street to observe from a distance. § 87(2)(b) called 911 and alerted the operator to his observation. The operator said that officers would be sent right away. As he was on the phone with the operator, § 87(2)(b) walked closer to the incident. § 87(2)(b) returned to § 87(2)(b) and told him that the males were officers in plainclothes. § 87(2)(b) told the operator that the males were officers, ended the phone call, and walked toward the incident.

§ 87(2)(b) was twenty to thirty yards away when he saw DT Greiner and DT Angilletta, who were identified via investigation and who were described as muscular, white or Hispanic males with short hair, near the rear of the van talking to approximately six witnesses. § 87(2)(b) could not hear what DT Greiner and DT Angilletta said. When § 87(2)(b) was approximately ten yards away from the front of the van, he heard the doors of the van slam and heard § 87(2)(b) inside of the van crying. § 87(2)(b) did not hear a body drop into the van. DT Greiner and DT Angilletta entered the van and drove away on Smith Street.

One to two minutes after the van drove away, four officers in two marked cars arrived. § 87(2)(b) asked the officers if he could report to them what he saw and they told § 87(2)(b) to call 311. § 87(2)(b) and § 87(2)(b) spoke to a married couple, § 87(2)(b) and § 87(2)(b) who were identified via investigation, who stated that they may have taken pictures of the incident. § 87(2)(b) took a picture of the dentures with his phone. § 87(2)(b) went to a store, located at Smith Street and Ninth Street, retrieved a bag, and placed the dentures in that bag. § 87(2)(b) and § 87(2)(b) decided to go to the 76th Precinct stationhouse to file a complaint.

When they arrived at the stationhouse, § 87(2)(b) and § 87(2)(b) entered the stationhouse, spoke to an unidentified officer, who was described as a slightly overweight black male in his mid-40s to early 50s, 5'9", slight gray hair, and in plainclothes with photo identification around his neck or on his belt, and voluntarily left without filing a complaint.

Complainant/Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) year old white female who § 87(2)(b) has blonde hair and blue eyes.
- § 87(2)(b)

CCRB Statement

On May 6, 2013, § 87(2)(b) filed this complaint via phone with IAB (encl. 10a-d). In addition to her original complaint, § 87(2)(b) was interviewed at the CCRB on July 1, 2013 (encl. 18a-e).

§ 87(2)(g)

On May 4, 2013, at approximately 10:30 a.m., as § 87(2)(b) and § 87(2)(b) were driving on Smith Street, they saw two men lean over and swing their arms toward the ground. § 87(2)(b) knew that someone was on the ground because of the two men's positions; however, she was unable to see who on the ground. § 87(2)(b) did not see the two men's fists make contact with § 87(2)(b). § 87(2)(b) heard screams and assumed that it was § 87(2)(b). § 87(2)(b) told § 87(2)(b) to pull over and he pulled over into a dead-end street. § 87(2)(b) ran toward the incident and stood approximately ten feet away. At that time, there were approximately four witnesses present, who remarked that what DT Greiner and DT Angilletta did was unnecessary. § 87(2)(b) was face-down on the ground and DT Greiner and DT Angilletta were trying to handcuff him. One of the officers' knees was on § 87(2)(b) however, § 87(2)(b) was unable to further describe his position. § 87(2)(b) did not see DT Greiner or DT Angilletta kick § 87(2)(b) while he was on the ground. § 87(2)(b) did not move or say anything while he was being handcuffed. DT Greiner approached § 87(2)(b) and the other witnesses and told them that § 87(2)(b) resisted arrest and they "had to do what they had to do." § 87(2)(b) arrived at the incident. As DT Greiner and DT Angilletta took § 87(2)(b) to the dark blue van, DT Greiner lifted his shirt and § 87(2)(b) saw a gun on his right side. § 87(2)(b) did not know why DT

Greiner lifted his shirt. After DT Greiner and DT Angilletta placed § 87(2)(b) into the van, they drove away. § 87(2)(b) did not remember if DT Greiner and DT Angilletta lifted § 87(2)(b) from the ground to place him in the van. § 87(2)(b) did not see DT Greiner and DT Angilletta lift § 87(2)(b) from the ground, lift him to the ceiling of the van, and drop him. When § 87(2)(b) and § 87(2)(b) traveled to the 76th Precinct stationhouse with the dentures, § 87(2)(b) spoke to an unidentified officer, who was described as a light-skinned Hispanic male in uniform, and told him that she possessed dentures from the incident on Smith Street. That officer took the dentures from § 87(2)(b). After § 87(2)(b) reiterated that § 87(2)(b) was physically assaulted by DT Greiner and DT Angilletta, § 87(2)(b) and § 87(2)(b) exited the stationhouse.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) year old black female. § 87(2)(b) was identified by her husband, § 87(2)(b)

Phone Statement

§ 87(2)(b) provided a phone statement on October 8, 2013 (encl. 19a). § 87(2)(g)

On May 4, 2013, at approximately 10:30 a.m., § 87(2)(b) and § 87(2)(b) were near a bus stop when they heard yells for help. As they crossed the street, the yells became louder and another individual said “shut up.” When § 87(2)(b) and § 87(2)(b) looked, they saw § 87(2)(b) on the ground on his stomach and he was handcuffed. An officer had his knee in § 87(2)(b)s back, swung his fists at § 87(2)(b)s face, and looked up. § 87(2)(b) yelled for help. § 87(2)(b) and § 87(2)(b) saw § 87(2)(b)s dentures on the ground; however, they did not see how they got to the ground. There were several witnesses already present. One of the officers saw the witnesses and said that it was a police matter and to leave the area. § 87(2)(b) and § 87(2)(b) said that they were not moving because they lived in the neighborhood. § 87(2)(b) and § 87(2)(b) asked if any of the other witnesses had a phone to take a picture. § 87(2)(b) gave § 87(2)(b) her phone to take pictures. The officer said that he was doing his job and that § 87(2)(b) was selling drugs near school children.

The officers grabbed § 87(2)(b)s shoulders and feet, picked him up, and threw him into an unmarked dark blue or black van, and drove away. § 87(2)(b) called 911 to file a complaint and two uniformed officers and fire trucks arrived. After PO Francis arrived and asked who called 911, § 87(2)(b) said that they wanted to file a complaint about police misconduct. § 87(2)(b) and § 87(2)(b) asked PO Francis how they could get DT Greiner’s and DT Angilletta’s shield numbers because they did not provide it when it was requested. After § 87(2)(b) obtained § 87(2)(b)s dentures, § 87(2)(b) and § 87(2)(b) exchanged contact information.

§ 87(2)(b) agreed to appear at the CCRB on October 23, 2013. On October 23, 2013, § 87(2)(b) missed her scheduled appointment without calling ahead of time to reschedule or cancel. On the same day, a missed appointment letter was sent to § 87(2)(b). On October 24, 2013 and October 30, 2013, calls were made and voicemails were left for § 87(2)(b).

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) year old Hispanic male. § 87(2)(b) was identified by § 87(2)(b)

§ 87(2)(b)

Phone Statement

§ 87(2)(b) provided a phone statement on October 8, 2013 (encl. 20a). § 87(2)(g)

On May 4, 2013, at approximately 10:30 a.m., § 87(2)(b) and § 87(2)(b) were crossing Smith Street and Ninth Street and saw that DT Greiner and DT Angilletta had § 87(2)(b) on the ground on his back. One officer had his knee in § 87(2)(b)'s chest and the other officer turned § 87(2)(b) over to handcuff him. § 87(2)(b) was in between a parked vehicle, which was double parked, and an unmarked burgundy van and he yelled for help. § 87(2)(b) was punched two to three times in his face by an officer. When § 87(2)(b) and § 87(2)(b) crossed the street, § 87(2)(b) was handcuffed and his dentures were on the ground. § 87(2)(b) did not see how they got to the ground. Five witnesses asked the officers what was going on. § 87(2)(b) obtained the name and email address of § 87(2)(b). The officers said to § 87(2)(b) "Mind your fucking business." One of the witnesses said that it was his business because he lived in the neighborhood. § 87(2)(b) asked an officer for his name, shield number, and his command and he said no. The officers picked § 87(2)(b) up from the ground and pushed him into the unmarked van; § 87(2)(b) continued to yell. § 87(2)(b) did not resist entering the van. Then the officers drove away.

§ 87(2)(b) agreed to appear at the CCRB on October 23, 2013. On October 23, 2013, § 87(2)(b) missed his scheduled appointment without calling ahead of time to reschedule or cancel. On the same day, a missed appointment letter was sent to § 87(2)(b). On October 24, 2013, a call was made to § 87(2)(b) and the appointment was rescheduled for October 31, 2013. On October 31, 2013, § 87(2)(b) missed his second scheduled appointment.

NYPD Statements:

Subject Officer: DT CHRISTOPHER GREINER

- DT Greiner is a § 87(2)(b) year old white male § 87(2)(b) with brown hair and blue eyes.
- On May 4, 2013, DT Greiner worked from 5:27 a.m. to 2:00 p.m. and was assigned to the prisoner van. DT Greiner worked with DT Alberto Angilletta. The officers were in plainclothes and were assigned to an unmarked black Ford van, vehicle number § 87(2)(e), § 87(2)(f).

Memo Book

At 10:30 a.m., DT Greiner noted that an individual was under arrest at Smith Street and Ninth Street. At 10:35 a.m., the individual was transported to the 76th Precinct stationhouse. At 10:40 a.m., DT Greiner went to § 87(2)(b) in regards to his injuries (encl. 21a-b).

Line of Duty Injury Report and Witness Statement

According to the Line of Duty Injury Report, while affecting an arrest, the suspected violently refused to be handcuffed. The suspect struck DT Greiner with a closed first. While affecting the arrest, DT Greiner struck his left elbow on the pavement, causing physical pain. § 87(2)(b) (encl. 22a-b). According to the witness statement, DT Greiner stated that while affecting an arrest, DT Angilletta was assaulted by the perpetrator and suffered severe physical injury to his lower back, pain, bruising, and swelling to the right leg (encl. 22c).

AIDED

According to the AIDED, while affecting an arrest, DT Greiner obtained an injury to his left arm due to the perpetrator resisting arrest (encl. 23a).

CCRB Statement

On July 25, 2013, DT Greiner was interviewed at the CCRB (encl. 24a-c).

On May 4, 2013, at approximately 10:30 a.m., DT Greiner, who was the passenger, and DT Angilletta, who was the driver, were assigned to Smith Street and Ninth Street to conduct observations. Smith Street and Ninth Street is a narcotic-prone location, specifically heroin and prescription medication. DT Greiner and DT Angilletta were double-parked on Smith Street, which is a one-way street. From five to ten feet away, DT Greiner observed § 87(2)(b) standing on the sidewalk near a bus stop. DT Greiner did not remember how long he had been at the location before he observed § 87(2)(b). § 87(2)(b) removed a cigarette box from one of his pockets and removed the clear wrapper. In his other hand, § 87(2)(b) had a number of pills and placed them in the wrapper. DT Greiner did not remember how many pills § 87(2)(b) possessed nor did he remember the color or the size of the pills. At the time of the incident, DT Greiner knew that § 87(2)(b) possessed prescription pills and knew what kind of pills they were; however, during the interview, he did not remember the kind of pills § 87(2)(b) possessed. DT Greiner was presented with a copy of the OLBS arrest report, which states that § 87(2)(b) possessed § 87(2)(b). § 87(2)(b) could be different colors, depending on the strength. DT Greiner still could not recall the color of the pills.

§ 87(2)(b) placed the wrapper in the cigarette box and placed the cigarette box in his right pocket. Three to four individuals approached § 87(2)(b) had brief conversations with him, and walked away. DT Greiner could not hear the conversations and he did not see any transactions between § 87(2)(b) and those individuals. § 87(2)(b) also went in and out of his pockets and went up his sleeve. DT Greiner did not recall seeing a bulge in § 87(2)(b)'s pockets. DT Angilletta did not observe § 87(2)(b) because he was observing individuals on the driver's side. DT Greiner said to DT Angilletta, "This guy is a 03", which meant that § 87(2)(b) was going to be under arrest for possession of narcotics.

DT Greiner exited the van, approached § 87(2)(b) and identified himself as a police officer. DT Greiner did not push § 87(2)(b)'s shoulder forward and strike him in the back of the head with a heavy object and DT Angilletta did not do this. When DT Greiner approached § 87(2)(b) he seemed agitated because he stared at DT Greiner with a menacing look. § 87(2)(b) did not seem intoxicated and DT Greiner did not know if § 87(2)(b) was under the influence of narcotics. DT Greiner asked § 87(2)(b) to walk with him because he had some questions; § 87(2)(b) complied. DT Greiner and § 87(2)(b) walked to the front of the van and § 87(2)(b)'s back was against the front of the van. DT Angilletta exited the van and spoke to an unidentified male individual. DT Greiner said that he observed § 87(2)(b) place something in his pocket and he asked § 87(2)(b) to show him what that item was. At this time, DT Angilletta walked toward DT Greiner and § 87(2)(b) removed the wrapper with the pills from his pocket and handed it to DT Greiner. DT Greiner said that § 87(2)(b) would be placed under arrest. An individual who has a prescription for a controlled substance needs to have that substance in a bottle with a label and carry the prescription with them. DT Greiner did not ask § 87(2)(b) if he had a prescription for the pills. DT Greiner nodded to DT Angilletta to alert him that § 87(2)(b) was going to be arrested. DT Greiner

instructed § 87(2)(b) to place his hands behind his back. With both hands, § 87(2)(b) pushed DT Greiner in the chest, causing him to stumble backwards. DT Angilletta placed his hands out to touch § 87(2)(b) and, with a closed fist, § 87(2)(b) swung at DT Angilletta and struck him in the face. DT Angilletta stumbled backwards. § 87(2)(b) continued to swing his closed fists at the officers and struck DT Greiner in the left shoulder. § 87(2)(b) made contact with DT Angilletta a second time; however, DT Greiner did not know where on DT Angilletta's body § 87(2)(b) made contact.

DT Greiner and DT Angilletta tried to grab onto § 87(2)(b) and he kicked the officers' legs and tried to flee. As a result of the struggle, DT Greiner, DT Angilletta, and § 87(2)(b) tripped and fell to the ground. DT Greiner landed on his left elbow. § 87(2)(b) kicked and flailed his arms and tried to escape by crawling underneath the van. § 87(2)(b) yelled, "Fuck you!" and "Fuck you guys!" The kicks made contact with DT Greiner's upper body. DT Greiner grabbed § 87(2)(b)'s belt and pulled him from underneath the van. DT Angilletta called for additional units over the radio during the struggle. DT Greiner may have punched § 87(2)(b) to overcome the assault, but he did not remember intentionally striking him. DT Greiner did not remember at which point he did this. DT Greiner did not kick § 87(2)(b). DT Angilletta may have punched § 87(2)(b) but he did not kick § 87(2)(b). While § 87(2)(b) was on his knees, DT Greiner did not pull § 87(2)(b) toward the van by his shirt and he did not recall if DT Angilletta did this. DT Greiner did not put pressure on § 87(2)(b)'s left ear nor did he kick § 87(2)(b)'s left ear.

DT Greiner and DT Angilletta placed § 87(2)(b)'s hands behind his back and handcuffed him. As § 87(2)(b) was handcuffed, DT Greiner's field team arrived in unmarked cars; however, DT Greiner was not sure which officers arrived and did not remember how many officers arrived. DT Greiner was presented with two photographs of marked vehicles (encl. 16g-h), taken by § 87(2)(b) on the date of the incident, and he did not recall seeing those vehicles. There were several witnesses present; however, DT Greiner did not remember if those witnesses said anything. DT Greiner did not think that he or DT Angilletta interacted with any of the witnesses.

As the officers brought § 87(2)(b) to the rear of the van, he continued to kick and tried to flee. § 87(2)(b) eventually walked to the rear of the van; however, DT Greiner did not remember at which point he did this. DT Greiner did not see § 87(2)(b)'s dentures and § 87(2)(b) did not mention his dentures. DT Greiner was presented with a photograph of § 87(2)(b)'s dentures that was taken by § 87(2)(b) (encl. 16f) and he did not recall seeing those dentures. § 87(2)(b) was not wearing glasses. DT Greiner picked up some items from the ground after the struggle, including the cigarette box.

§ 87(2)(b) walked into the rear of the van to be transported to the 76th Precinct stationhouse. DT Greiner did not lift § 87(2)(b) from the ground, lift him to the ceiling of the van, and drop him. DT Greiner entered the rear of the van and put the seatbelt on § 87(2)(b). DT Greiner did not remember if he and DT Angilletta drove § 87(2)(b) to the stationhouse or if they took another vehicle to go to the hospital. DT Greiner and DT Angilletta went to § 87(2)(b) and DT Greiner received § 87(2)(b). § 87(2)(b) DT Greiner did not think that he returned to the stationhouse from the hospital.

DT Greiner was not sure what § 87(2)(b) was charged with.

Subject Officer: DT ALBERTO ANGILLETTA

- *DT Angilletta is a § 87(2)(b) year old white male who § 87(2)(b) has brown hair and brown eyes.*
- *On May 4, 2013, DT Angilletta worked from 5:27 a.m. to 2:00 p.m. and was assigned to the prisoner van. DT Angilletta worked with DT Christopher Greiner. The officers were in plainclothes and were assigned to an unmarked blue Ford Econoline van.*

Memo Book

At 10:30 a.m., DT Angilletta noted that an individual was under arrest at the corner of Smith Street and Ninth Street. At 10:35 a.m., the perpetrator was transported to the 76th Precinct stationhouse. At 10:40 a.m., DT Angilletta went to § 87(2)(b) (encl. 25a-b).

Line of Duty Injury Report and Witness Statement

According to the Line of Duty Injury Report, while affecting the arrest of a suspect, the suspect violently refused to be handcuffed and struck the officer with a closed fist. While affecting the arrest, DT Angilletta fell to the ground, causing pain and a back injury (encl. 26a). According to the witness statement, DT Angilletta stated that while affecting an arrest, DT Greiner struck his elbow on the pavement, causing an injury to his left arm (encl. 26b).

AIDED

According to the AIDED, while affecting an arrest, DT Angilletta injured his lower back and right leg due to the perpetrator resisting arrest (encl. 27a).

CCRB Statement

DT Angilletta was interviewed at the CCRB on July 25, 2013 (encl. 28a-c). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

On May 4, 2013, at approximately 10:30 a.m., while double-parked on Smith Street, DT Angilletta spoke to an individual who asked for directions. After DT Greiner told DT Angilletta that there was an arrest situation, DT Angilletta exited the van and walked to DT Greiner and § 87(2)(b). DT Greiner and § 87(2)(b) stood on the sidewalk on the driver's side of the van. DT Angilletta did not recall the conversation between DT Greiner and § 87(2)(b). DT Angilletta saw pills in DT Greiner's hand and recognized them as a controlled substance. DT Angilletta did not recall how many pills there were nor did he recall if the pills were in another item. DT Angilletta did not see how DT Greiner obtained the pills. DT Angilletta did not recall if § 87(2)(b) was asked to provide a prescription. DT Angilletta did not push § 87(2)(b)'s shoulder forward and strike him in the back of the head with a heavy object nor did DT Greiner do this.

§ 87(2)(b) was under arrest for § 87(2)(b) and DT Angilletta instructed § 87(2)(b) to place his hands behind his back; § 87(2)(b) did not comply. After DT Angilletta placed his hands on § 87(2)(b)'s arms to place him under arrest, § 87(2)(b) struck DT Angilletta in the neck and legs several times with his hands and feet. § 87(2)(b) attempted to flee by pulling away from the officers and he yelled profanities. § 87(2)(b) said throughout the incident that he was not going back to jail.

When the officers held onto § 87(2)(b) he dropped his body to the ground and the officers fell. § 87(2)(b) crawled underneath the van and managed to get his upper body underneath the van before DT Angilletta removed him; however, DT Angilletta did not recall how he did this. In order to overcome the assault and to defend himself, DT Angilletta may have struck § 87(2)(b) several times, but did not recall striking § 87(2)(b) with an open fist. DT Angilletta did not recall where he struck § 87(2)(b). DT Angilletta did not kick § 87(2)(b) and he did not put any pressure on § 87(2)(b)'s head and he did not see DT Greiner do this. While § 87(2)(b) was on his knees, DT Angilletta did not pull § 87(2)(b) toward the van by his shirt nor did DT Greiner do this. DT Angilletta handcuffed § 87(2)(b). DT Angilletta did not recall if § 87(2)(b) wore glasses and he did not see broken glasses. DT Angilletta did not recall seeing dentures on the ground. DT Angilletta was presented with a photograph of the dentures taken by § 87(2)(b) (encl. 16f) and he did not recall seeing those dentures.

Officers responded after DT Angilletta requested additional units; however, he did not recall how many uniformed and plainclothes officers arrived and he did not recall if the additional units arrived after § 87(2)(b) was handcuffed. § 87(2)(b) resisted walking to the rear of the van by pulling away from the officers. DT Angilletta gave instructions to § 87(2)(b) however, he did not recall what those instructions were. DT Angilletta did not recall § 87(2)(b) resisting while entering the van. DT Angilletta did not lift § 87(2)(b) from the ground, lift him to the ceiling of the van, and drop him and did not see DT Greiner do this. DT Angilletta transported § 87(2)(b) to the 76th Precinct stationhouse in the van.

DT Angilletta did not recall walking § 87(2)(b) into the stationhouse nor did he recall processing § 87(2)(b) while at the stationhouse. DT Angilletta sustained scrapes and pain in his lower back and went to the hospital from the stationhouse. § 87(2)(b) DT Angilletta was not out of work. DT Angilletta did not recall returning to the stationhouse after the hospital.

Medical Records

§ 87(2)(a) PHL § 18(6)

NYPD Documents

SPRINT Print-Out

According to the SPRINT, § 87(2)(b) called 911 and stated that an individual was being assaulted by two males and they were holding the individual by a blue ford van. The descriptions of the two males were unknown. Sector C and a sergeant arrived at the scene (encl. 29a).

UF-61 Complaint Reports

According to the complaint reports completed by DT Angelica Salmeron of Narcotics Borough Brooklyn South, while affecting an arrest, § 87(2)(b) became severely violent and punched an officer in the neck/collar bone area with a closed fist, causing pain. § 87(2)(b) kicked the other officer while refusing to be handcuffed. The officers and § 87(2)(b) fell to the ground, causing pain, contusions, and bruising to the officers (encl. 30a-d).

OLBS Arrest Report

According to the arrest report, § 87(2)(b) was in possession of a plastic bag, which contained eleven § 87(2)(b). When officers attempted to arrest § 87(2)(b) he became severely violent and swung a closed fist at the officers. § 87(2)(b) punched one of the officers in the neck/collar bone area, causing pain. § 87(2)(b) continued to swing and flail his arms, kicking and punching the other officer while refusing to be handcuffed. The officers and § 87(2)(b) fell to the ground, causing swelling and bruising to the officers. § 87(2)(b) was not strip-searched. § 87(2)(b) had a cell phone, but no International Mobile Equipment Identity (IMEI). § 87(2)(b) was charged with § 87(2)(a) 160.50 criminal possession of a controlled substance, resisting arrest, and disorderly conduct (encl. 31a-c).

Property Voucher

According to the property voucher, eleven blue pills inside of a Ziploc bag were vouchered (encl. 32a).

Command Log

According to the command log, § 87(2)(b) was brought into the stationhouse at 11:15 a.m. and the arrest was verified by LT Alan Gaspard of Narcotics Borough Brooklyn South. § 87(2)(b)'s physical and mental condition was noted as apparently normal. § 87(2)(b) was transported to § 87(2)(b) (encl. 33a).

Medical Treatment of Prisoner Form

According to the Medical Treatment of Prisoner Form, § 87(2)(b) complained of stomach and head pain at the 76th Precinct stationhouse. § 87(2)(b) was transported to § 87(2)(b) and was accompanied by DT Charles Stewart of Narcotics Borough Brooklyn South (encl. 34a).

Injury and Illness Incident Reports

According to the Injury and Illness Incident Report for DT Greiner, while affecting an arrest, the perpetrator struck DT Greiner with a closed fist, which caused him to fall to the ground. § 87(2)(b) (encl. 35a). According to the Injury and Illness Incident Report for DT Angilletta, while affecting an arrest, the perpetrator struck DT Angilletta with a closed fist, causing him to fall to the ground. § 87(2)(b) (encl. 36a).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of December 23, 2013 with regard to the incident (encl. 37a).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [illegible]

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. 3a; 4a; 5a).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (encl. 6a).

- DT Greiner has been a member of the service for eleven years and there are three substantiated CCRB allegations against him (encl. 1a-b):
 - Charges were recommended for case 201206163, which dealt with allegations of refusal to provide name and shield, discourtesy, and a stop.
- DT Angilletta has been a member of the service for seventeen years and there are ten substantiated CCRB allegations against him (encl. 2a):
 - No disciplinary action was issued for case 200703375, which dealt with allegations of refusal to provide name and shield, search, and question.
 - Charges were recommended for case 201206163, which dealt with allegations of threat of force, refusal to provide name and shield, discourtesy, offensive language, frisk, search, and a stop.

DT Greiner and DT Angilletta acknowledged interacting with § 87(2)(b)

§ 87(2)(b) stated that an officer told § 87(2)(b) to “mind your fucking business.” Because § 87(2)(b) did not make this allegation on his own behalf, a discourtesy allegation will not be pled.

§ 87(2)(g)

Allegation A- Force: DT Christopher Greiner struck § 87(2)(b) with a blunt instrument.

§ 87(2)(b) stated that without provocation, DT Greiner walked behind him, pushed his left shoulder forward, and struck him at the top of his head with a heavy, solid object. DT Greiner denied doing this and DT Angilletta did not see DT Greiner do this.

§ 87(2)(b) did not make a statement to medical personnel about being struck in the head. § 87(2)(b)

§ 87(2)(b)'s arrest photograph shows abrasions to the left side of his face § 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B- Force: DT Christopher Greiner used physical force against § 87(2)(b)

Allegation C- Force: DT Alberto Angilletta used physical force against § 87(2)(b)

When § 87(2)(b) was on his knees, he stated that DT Greiner grabbed the front of his shirt and pulled him to an unmarked van. While still on his knees, § 87(2)(b) felt blows to his back and right side and he was kicked in the stomach; however, he could not see which officer did this. One of the officers put his leg in front of § 87(2)(b) grabbed the back of his shirt, and pushed him to the ground. While his left ear was on the ground, § 87(2)(b) felt pressure on his left ear. § 87(2)(b)'s bottom dentures broke into two pieces while in his mouth and the right piece flew out of his mouth. § 87(2)(b) was handcuffed; however, he did not know at what point he was handcuffed. § 87(2)(b) stated that the officers picked him up from the ground, carried him to the van, lifted his body to the ceiling of the van, and dropped him.

While stopped at a red light, § 87(2)(b) saw the officers punch § 87(2)(b) but he did not recall seeing the officers kick § 87(2)(b). § 87(2)(b) saw the officers' fists swinging, but she did not see them make contact with § 87(2)(b). § 87(2)(b) did not see the officers kick § 87(2)(b). § 87(2)(b) stated that an officer swung his fists at § 87(2)(b) after he was handcuffed. § 87(2)(b) stated that § 87(2)(b) was punched in the face two or three times and when he and § 87(2)(b) crossed the street, § 87(2)(b) was handcuffed. § 87(2)(b) did not see the officers pick up § 87(2)(b) from the ground, carry him to the van, lift his body to the ceiling of the van, and drop him. Although § 87(2)(b) did not see the officers place § 87(2)(b) in the van, he stated that he did not hear a body drop in the van. § 87(2)(b) saw the dentures on the ground and took a picture of them and § 87(2)(b) obtained a Ziploc bag from a nearby store and picked them up.

DT Greiner stated that as a result of the struggle with § 87(2)(b) the officers and § 87(2)(b) tripped and fell to the ground. DT Angilletta stated that he may have punched § 87(2)(b) to overcome assault, but he did not remember intentionally striking § 87(2)(b). DT Angilletta stated that while the officers held onto § 87(2)(b) he dropped to the ground and

the officers fell. DT Angilletta may have struck § 87(2)(b) to overcome assault and defend himself. DT Greiner and DT Angilletta denied kicking § 87(2)(b) or putting pressure on his left ear. After being presented with a photograph of § 87(2)(b)'s dentures, DT Greiner and DT Angilletta did not recall seeing those dentures. DT Greiner denied hitting § 87(2)(b) at the top of his head with an object and denied pulling him to an unmarked van. The officers denied picking up § 87(2)(b) from the ground, carrying him to the van, lifting his body to the ceiling of the van, and dropping him.

§ 87(2)(b)'s arrest photograph shows abrasions to the left side of his face and his medical records noted § 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(b) The Medical Treatment of Prisoner Report noted that § 87(2)(b) complained of head and stomach pain and his medical records did mention his dentures.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations B and C** be closed as **Unsubstantiated**.

Allegation D- Abuse of Authority: An officer refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that he asked an officer for his name and shield number and the officer said no. However, § 87(2)(b) was uncooperative with the investigation. Therefore, it is recommended that **Allegation D** be closed as **Victim Uncooperative**.

Team: One

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date